

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00029
CASE NAME: UNIVERSE PAINTING, INC. VS. LYNN BRYANT TRUSTEE OF THE BENNETT TRUST
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED CROSS COMPLAINT
FILED BY: LYNN BRYANT TRUSTEE OF THE BENNETT TRUST
TENTATIVE RULING:

Cross-complainant Bryant seeks leave to file a first amended cross-complaint. The motion is expressly unopposed and is accordingly **granted**. This should have been handled by stipulation.

2. 9:00 AM CASE NUMBER: C23-00343
CASE NAME: JOHN SCOTT VS. GOLDEN RAIN FOUNDATION
HEARING ON SUMMARY MOTION
FILED BY: GOLDEN RAIN FOUNDATION
***TENTATIVE RULING**

The summary judgment hearing is **vacated** in light of the conditional settlement. The motion can be reset if that turns out to be necessary.

3. 9:00 AM CASE NUMBER: C23-02323
CASE NAME: NORTH OF MARINA ASSOCIATION VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF CITY OF RICHMOND FROM:
ROTO-ROOTER SERVICES COMPANY
FILED BY: ROTO-ROOTER SERVICES COMPANY
TENTATIVE RULING:

Cross-defendant Roto-Rooter Services Company demurs to the fourth cause of action in City of Richmond's first amended cross-complaint, which asserts a claim for express indemnity. Roto-Rooter argues that Richmond cannot maintain an express indemnity claim against it because the original/underlying complaints in this matter make no allegations of fault against Roto-Rooter and the express indemnity clause provides that it will not apply in instances of Richmond's "sole negligence."

For the reasons discussed below, the Court **overrules** Roto-Rooter's demurrer. Roto-Rooter is ordered to file and serve its answer to the first amended cross-complaint within 20 days of entry of this order.

Background

Plaintiffs North of Marina Association (NOMA) and Rows at North of Marina Association (Rows, together with NOMA, Plaintiffs) filed separate lawsuits against the City of Richmond and Does 1-50, asserting claims for inverse condemnation, dangerous condition on public property, private nuisance, public nuisance, and trespass. (NOMA Amended Complaint, p. 1; Rows Complaint, p. 1.) All the claims asserted by NOMA and Rows relate to sewer overflows at real property located in Richmond,

California. These cases were consolidated by stipulation and order.

On April 3, 2025, the City of Richmond filed a cross-complaint against Roto-Rooter Services Company and Roes 1-10, asserting claims for apportionment of fault, contribution, equitable indemnity, and express indemnity. (Cross-Complaint, p.1.) On July 9, 2025, Richmond filed an amended complaint that asserted the same claims but modified the attachments to the complaint. (Amended Cross-Complaint. P. 1, Exhs. A – C.)

Legal Standard

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"[W]hether an indemnity agreement covers a given case turns primarily on contractual interpretation, and it is the intent of the parties as expressed in the agreement that should control. When the parties knowingly bargain for the protection at issue, the protection should be afforded. This requires an inquiry into the circumstances of the damage or injury and the language of the contract; of necessity, each case will turn on its own facts." (*Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 633.)

Discussion

The crux of Roto-Rooter's demurrer is that Richmond's claim for express indemnity fails because the underlying complaints allege sole negligence as to Richmond and nothing against Roto-Rooter. (Demurrer, p. 4.) The support for this argument focuses on the underlying complaints, which the amended cross-complaint incorporates by reference. (Amended Cross-Complaint, ¶ 31.)

Richmond argues that Roto-Rooter improperly ignores the allegations from the cross-complaint in assessing the possible liability of Roto-Rooter. (Opposition, p. 4.) The amended cross-complaint alleges that Roto-Rooter "removed required check valves ... and replaced the check valves with a straight pipe. These actions directly caused damage to Plaintiff. No person from the City instructed an employee or independent contractor of Roto-Rooter to remove the check valves." (Amended Cross-Complaint, ¶ 17.)

This is in line with the complaints of NOMA and Rows, which allege that the failure of check valves is part of the dangerous condition of public property and that the dangerous condition of public property caused them damages. (NOMA First Amended Complaint, ¶¶ 15(e) and 49, Rows Complaint, ¶¶ 15(e) and 49.) Plaintiffs also allege that their contractor told them that a Richmond

city inspector told the contractor to remove the check valves and replace them with a straight pipe. (NOMA First Amended Complaint, ¶ 20, Rows Complaint, ¶ 20.) Interestingly, NOMA's original complaint alleged that Richmond contended that the "ASSOCIATION'S repair contractor had broken the damaged check valves." (NOMA Original Complaint, ¶ 21.)

The basic problem with Roto-Rooter's demurrer is that it tacitly assumes that the City, in cross-complaining, is somehow limited to the allegations of the original complaint against the City, so that its cross-complaint cannot add any other allegations or theories. Roto-Rooter cites no authority for such a limitation, and a little easy analysis quickly disproves it. Suppose an absentee property owner hires a contractor to do work on the property, with an indemnification provision in the contract. Contractor's work causes damage to the home of a neighbor, who sues the property owner, alleging only the owner's fault and not mentioning the contractor. Surely the property owner would be entitled to cross-complain against the contractor, seeking indemnification against the neighbor's suit. But under Roto-Rooter's theory in this demurrer, the neighbor's omission to sue the contractor (or to allege the contractor's fault) would prevent the property owner from seeking the indemnification he contracted for.

In examining the language of the indemnity provision (Cross-Complaint, ¶ 61) and the allegations from the complaints in this case (Amended Cross-Complaint, NOMA First Amended Complaint, and Rows Complaint), there is reason to believe that Roto-Rooter has potential liability based on the allegations and the Court overrules the instant demurer of cross-defendant Roto-Rooter. The underlying complaint being brought only against the City may show that the plaintiffs see the City as the sole wrongdoer; but hardly binds the City to agree to that proposition and refrain from pointing a cross-complaint finger at the party the City considers to be at fault.

4. 9:00 AM CASE NUMBER: C24-00779

CASE NAME: MOORE OKEH VS. HARDEEP SINGH

***HEARING ON MOTION IN RE: SET ASIDE ORDER COMPELLING ARBITRATION**

FILED BY: OKEH, MOORE N.

TENTATIVE RULING:

Before the Court is Plaintiffs' Motion to Set Aside Order Compelling Arbitration. The motion is **denied**.

Procedural Background

Plaintiffs filed the initial complaint in this matter on April 3, 2024. On November 13, 2024, Defendant U.S. Bank National Association filed a motion to compel arbitration. The hearing for the motion was set for March 21, 2025. As such, any opposition would be due on or before March 10, 2025.

In late February, the parties submitted a joint stipulation to continue the hearing date until April 21, 2025 "or as soon as the Court is available thereafter." The Court signed the stipulation on March 3 resetting the hearing date for May 2, 2025. The stipulation was entered on the docket on March 10, 2025.

Plaintiff never filed an opposition to the motion to compel arbitration. Accordingly, on May 1, 2025, the Court posted the tentative ruling indicating that the "unopposed motion to compel arbitration is granted." Plaintiff did not contest the tentative ruling. As such, the Court issued a minute order on